

22STUD03071 22STUD03071

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Case Number: 22STUD03071 Hearing Date: August 13, 2026 Dept: 224

Hayworth Hyde, LLC v. George Karapetian

TENTATIVE RULING

Plaintiff's motion to enforce settlement and enter judgment against Defendant is GRANTED.

Introduction

On June 21, 2022, Plaintiff filed the Complaint in this action.

On November 14, 2025, Plaintiff filed the instant motion to enforce settlement and enter stipulated judgment.

No opposition was filed.

Legal Standard

Code of Civil Procedure (CCP) § 664.6 provides the following: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6.)

"Section 664.6 empowers a court to enforce a settlement agreement by way of a summary procedure if certain requirements are satisfied. [citations] In order to take advantage of the statute's expedited procedure, a party must first establish the agreement at issue was set forth 'in a writing signed by the parties' (section 664.6) or was made orally before the court [citation]." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

"A written settlement agreement is not enforceable under section 664.6 unless it is

signed by all of the parties to the agreement, not merely the parties against whom

the agreement is sought to be enforced.” (Sully-Miller Contracting Co. v.

Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.)

Discussion

Plaintiff moves to enforce the Stipulation executed by the parties on September 8, 2022. (Motion).

In support of the motion, Plaintiff submits: (1) the Stipulation and Settlement Agreement (Exh. 1); (2) the declaration of Benjamin Cohanzad (Cohanzad Decl.); and (3) the declaration of Plaintiff's counsel Parham Hendifar (Hendifar Decl.)

The Stipulation was signed by Plaintiff's counsel on behalf of Plaintiff Hayworth Hyde LLC and by Defendant George Karapetian. (Exh. 1; Hendifar Decl.) In exchange for payment of \$50,970, Plaintiff agreed to dismiss the underlying complaint in this action without prejudice, and to vacate and set aside the Court's default judgment against Defendant. (Motion; Exh. 1)

The Stipulation states that it constitutes a written settlement agreement within the meaning of Code of Civil Procedure (CCP) § 664.6(a), that a writing is signed by a party if it is signed by an attorney of record of said party in compliance with CCP §

664.6 subd. (b)(2) and authorizes the Court to retain jurisdiction and enforce the agreement in case of breach as required by CCP § 664.6. Thus, The Court finds that the Stipulation is signed by the parties, and that the parties expressly requested the Court to retain jurisdiction, as required by CCP § 664.6. (Motion; Exh. 1).

Per the terms of the Stipulation, Defendant was to pay \$5,495.00 on or before the first day of each month starting October 1, 2022, and ending on March 1, 2023. Thereafter, Defendant was to pay \$1,000.00 on or before the first day of each month starting April 1, 2023, and ending on September 1, 2024. This for a total amount of \$50,970.00 to be paid to Plaintiff by September 1, 2024. (Exh. 1; Cohanzan Decl.)

Per the terms of the Stipulation, Defendant admits liability in the sum of \$50,970.00, waives and agrees that Defendant's security deposit will be retained by the Plaintiff, and agrees that judgment shall be entered only upon default by Defendant in the performance of the terms of the stipulation. (Exh. 1)

Plaintiff establishes that Defendant defaulted. Defendant George Karapetian, or anyone on his behalf, made the following payments subsequent to the execution of the Stipulation: (1) \$5,495.00 on September 28, 2022; (2) \$5,495.00 on November 4, 2022; and (3) \$5,495.00 on December 6, 2022. Defendant stopped the payments thereafter (Cohanzan Decl.)

On February 21, 2023, Plaintiff's counsel emailed Defendant's counsel informing him of the breach of the stipulation. On February 22, 2023, Defendant's counsel responded the following: “my client has told me to provide the following communication to you. ‘Please tell them I will pay them this month. And this month will be my last here most likely. I will continue making the payments as agreed.’” (Hendifar Decl., 1;16-18). On March 6, 2023, Plaintiff's counsel emailed Defendant's counsel regarding Defendant's failure to submit payment, but no reply was received. (Hendifar Decl.)

The Court retained jurisdiction to enforce the settlement under CCP § 664.6 by

stipulation and order dated September 8, 2022, filed before any dismissal. (Motion; Exh. 1; Hendifar Decl.) Defendant has filed no opposition. On this record, the settlement is enforceable against Defendant George Karapetian, who is a party to the

action, signed the settlement, admitted liability, and defaulted. Judgment is properly entered against George Karapetian in the amount of \$50,970.00, less any payments made under the Payment Plan. Defendant paid \$16,485.00, bringing the total to \$34,485. Plaintiff states that at least one year of prejudgment interest at

10% per annum is warranted, in this case \$3,448.50. (Cohanzan Decl.) Thus, the judgment amount is \$37,933.50.

Conclusion

Based on the foregoing, Plaintiff's motion to enforce settlement is GRANTED and judgment shall be entered against Defendant in the amount of \$37,933.50.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.